

HOUSE No. 976

The Commonwealth of Massachusetts

PRESENTED BY:

Kristin E. Kassner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect water supplies and the environment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>1/15/2025</i>

HOUSE No. 976

By Representative Kassner of Hamilton, a petition (accompanied by bill, House, No. 976) of Kristin E. Kassner relative to water supplies and the environment. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect water supplies and the environment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of Chapter 21G shall be amended to strike the definition of safe
2 yield in its entirety and replace with the following: -

3 "Safe yield", the maximum dependable withdrawals that can be made continuously from
4 a water source including ground or surface water annually without depleting the source beyond
5 its ability to be replenished naturally. Provided, however, that such dependability is a function of
6 storage and drought probability.

7 SECTION 2. Chapter 21G shall be amended to add the following: -

8 The Department of Environmental Protection (DEP) shall re-calculate safe yield for each
9 basin in Massachusetts, based on seasonal supply in the summer months, and taking into account
10 the existence of reservoir storage, or lack thereof. Safe Yield shall be recalculated at a frequency
11 as determined by DEP, but no longer than every 10 years.

12 SECTION 3. Chapter 21G shall be amended to add the following: -

13 The Department of Environmental Protection (DEP) shall calculate safe yield for each of
14 the sub-basins in Massachusetts and take into account withdrawals on the sub basin scale when
15 issuing permits. Stream Flow calculated by USGS shall be used in this analysis.